

25STCV17113 25STCV17113

County: los-angeles

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Case Number: 25STCV17113 Hearing Date: September 28, 2026 Dept: I

25STCV17113 CRUPI v. MORETON, JR., et
al.

September 28, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Quash Service of Summons

I.

Background

On June 12, 2025, Plaintiff Annunziata

Crupi ("Plaintiff") filed a Complaint against Defendants Edward B. Moreton Jr. ("Moreton"), Randolph M. Hammock ("Hammock"), University of Southern California ("USC"), Valter Longo ("Longo"), Sebastian Brandhorst ("Brandhorst"), Wendy Snaer ("Snaer"), Gregory Wong ("Wong"), Heather Cox ("Cox"), L-Nutra ("Nutra"), Marta Alcumbrac ("Alcumbrac"), Howard Smith ("Smith"), Peter Walrod ("Walrod"), Candice Zee ("Zee"), Mark Schaeffer ("Schaeffer"), and DOES 1 through 100 (collectively, "Defendants"), alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to

travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress.

On August 7, 2026, Wong filed the instant Motion to Quash Service of Summons. Any opposition would have been due on September 14, 2026. To date, no opposition has been filed.

II. Discussion

Request for Judicial Notice

Wong's request for judicial notice is GRANTED as to Exhibits 1 and 5 pursuant to Evidence Code Section 452, subdivision (d) except as to the truth of the matters asserted. Wong's request for judicial notice is DENIED as to Exhibits 2-4 as the Court can look to its own records without the need for judicial notice.

Merits of the Motion

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8." (Code Civ. Proc., § 418.10, subd. (a).)

Wong specially appears to move for an order quashing the service of the summons and complaint upon him via personal and substituted service on the grounds that such service attempts were improper and invalid because it was not done in accordance with Code of Civil Procedure Sections 415.10 and 415.20, subdivision (a). The Court agrees.

Code of

Civil Procedure Section 415.10 states in pertinent part: "A summons may be served by personal delivery of a copy of the summons and

of the complaint to the person to be served. Service of

a summons in this manner is deemed complete at the time of such delivery. The

date upon which personal delivery is made shall be entered on or affixed to the

face of the copy of the summons at the time of its delivery. However, service

of a summons without such date shall be valid and effective." (Code Civ. Proc.,

§ 415.10 [emphasis added].)

Under Code

of Civil Procedure Section 415.20, subdivision (a), "[i]n lieu of personal

delivery of a copy of the summons and complaint to the person to be served as

specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint

during usual office hours in the person's office or, if no

physical address is known, at the person's usual mailing address, other than a

United States Postal Service post office box, with the person who

is apparently in charge thereof, and by thereafter mailing a copy of the

summons and complaint by first-class mail, postage prepaid to the person to be

served at the place where a copy of the summons and complaint were left. When

service is effected by leaving a copy of the summons and complaint at a mailing

address, it shall be left with a person at least

18 years of age, who shall be informed of the contents thereof. Service of a

summons in this manner is deemed complete on the 10th day after the mailing." (Code Civ.

Proc., § 415.20, subd. (a) [emphasis added].)

Here,

Plaintiff filed proof of substituted service on July 7, 2026 and proof of

personal service on July 8, 2026. (See POS, 7/7/26; POS, 7/8/26.) With respect

to the personal service, the proof of service indicates that a Pamela Molina

("Ms. Molina"), front desk receptionist at Barkhordarian Law Firm a/k/a Bark

Law Firm was served the summons and complaint as an authorized agent for Wong

on July 7, 2026. (POS, 7/8/26 at ¶3b.) However, Wong has not authorized anyone

including Bark Law Firm and/or Ms. Molina to receive service on his behalf.

(Wong Decl., ¶2; Molina Decl., ¶¶2-3; Barkhordarian Decl., ¶¶3-4; Alumbrac

Decl., ¶3.) Similarly, there were no attempts to personally serve Wong. (Wong

Decl., ¶5.)

As to

substituted service, the proof of service indicates that Ms. Molina was served the summons and complaint as person apparently in charge at the office or usual place of business of Wong. (POS, 7/7/26 at ¶5b(1).) However, Wong has not worked at Bark Law Firm since February 2024. (Wong Decl., ¶2; Barkhordarian Decl., ¶2.) Furthermore, the summons and complaint were served by The Church of Truth, which is not a California registered process server (POS, 7/7/26 at ¶7; POS, 7/8/26 at ¶7), thus not entitled to the evidentiary presumption of valid service per Evidence Code Section 647. Plaintiff has not opposed the present motion with any rebuttal evidence, thus concedes on this issue. (See California Rules of Court Rule 3.1113(a); see also Rule 3.1320(f); Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [the party who fails to argue an issue abandons that issue].)

III.

Conclusion

Accordingly, Specially Appearing Defendant Gregory Wong's Motion to Quash Service of Summons is GRANTED.

Specially Appearing Defendant Gregory Wong to give notice.

25STCV17113 CRUPI v. MORETON, JR., et al.

September 28, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Quash Service of Summons

I.

Background

On June 12, 2025, Plaintiff Annunziata Crupi ("Plaintiff") filed a Complaint against Defendants Edward B. Moreton Jr. ("Moreton"), Randolph M. Hammock ("Hammock"), University of Southern California ("USC"), Valter Longo ("Longo"), Sebastian Brandhorst ("Brandhorst"), Wendy Snaer ("Snaer"), Gregory Wong ("Wong"), Heather Cox ("Cox"), L-Nutra ("Nutra"), Marta Alcumbrac ("Alcumbrac"), Howard Smith ("Smith"), Peter Walrod ("Walrod"),

Candice Zee ("Zee"), Mark Schaeffer ("Schaeffer"), and DOES 1 through 100 (collectively, "Defendants"), alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress.

On July 27, 2026, Brandhorst filed the instant Motion to Quash Service of Summons. On September 21, 2026, Plaintiff filed an Opposition. On the same day, Brandhorst filed a Reply.

II. Discussion

Preliminary Issues

As a preliminary matter, the Court notes that Plaintiff's opposition is untimely per Code of Civil Procedure Section 1005, subdivision (b), which states in pertinent part: "All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b) [emphasis added].) Plaintiff's opposition was due September 14, 2026, which would have been nine (9) court days before the noticed hearing date of September 28, 2026. Plaintiff's opposition was filed on September 21, 2026, which is the deadline for Brandhorst's reply brief. Nevertheless, Brandhorst was able to file a reply brief and substantively address the arguments raised by Plaintiff's untimely opposition.

Therefore, the Court will exercise its discretion and consider the opposition on the merits.

Merits of
the Motion

“A

defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8.” (Code Civ. Proc., § 418.10, subd. (a).)

Brandhorst specially appears to move for an order quashing the service of the summons and complaint upon him via substituted service on the grounds that such service was improper and invalid because it was not done in accordance with Code of Civil Procedure Section 415.20, subdivision (a). The Court agrees.

Under Code

of Civil Procedure Section 415.20, subdivision (a), “[i]n lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office or, if no physical address is known, at the person's usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (a) [emphasis added].)

Here,

Plaintiff filed proof of substituted service on Brandhorst on May 18, 2026.

(See POS, 5/18/26; Politis Decl., ¶3, Ex. A.) The proof of service indicated that Brandhorst was served the summons and complaint via substituted service on an individual identified as a “lab assistant/staff member” on May 12, 2026 at Brandhorst’s workplace. (POS, 5/18/26 at ¶5b.) Although the proof of service states that the summons and complaint was served by a California registered process server (POS at ¶7), thus entitled to the evidentiary presumption under Evidence Code Section 647, there is no indication that the purported “lab assistant/staff member” was a person “apparently in charge” of Brandhorst’s workplace nor facts showing that the process server attempted to verify whether the “lab assistant/staff member” was in charge of the Andrus Gerontology Center or figure out who was “apparently in charge” of Brandhorst’s workplace. (See Chinese Theater, LLC v. Starline Tours USA, Inc. (2025) 115 Cal.App.5th 1048, 1059 [“[T]he phrase ‘apparently in charge’ cannot reasonably be read to validate service on any employee found at a business location. There must be some indication warranting a finding the employee is someone ‘apparently in charge’ and reasonably likely to deliver the service documents to the intended recipient and the service declarations should reflect some basic facts upon which the finding was made.”].)

Plaintiff’s opposition further confirms that the process server merely left the summons and complaint with a person who identified themselves as a “lab assistant/staff member” not someone in a supervisory position or with responsibility for accepting service for employees of the Andrus Gerontology Center. (Opp. at 2:1-11.) Moreover, Plaintiff’s argument that the present motion is directed to a pleading superseded by an purportedly filed First Amended Complaint (Opp. at 3:1-28), the Court already addressed in its June 18, 2026 ruling that the operative pleading in this action is the June 12, 2025 complaint. (See Min. Order, 6/18/26.) Likewise, Plaintiff’s contention that service was done at a location where she worked directly with Brandhorst is irrelevant to the disposition of the present motion.

III.

Conclusion

Accordingly, Specially Appearing Defendant Sebastian Brandhorst’s Motion to Quash Service of Summons is GRANTED.

Specially Appearing Defendant
Sebastian Brandhorst to give notice.

25STCV17113 CRUPI v. MORETON, JR., et al.

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Van Nuys Courthouse East, Dept. I

Motion to Quash Service of Summons

I.

Background

On June 12, 2025, Plaintiff Annunziata

Crupi ("Plaintiff") filed a Complaint against Defendants Edward B. Moreton Jr. ("Moreton"), Randolph M. Hammock ("Hammock"), University of Southern California ("USC"), Valter Longo ("Longo"), Sebastian Brandhorst ("Brandhorst"), Wendy Snaer ("Snaer"), Gregory Wong ("Wong"), Heather Katheleen Walsh Cox ("Cox"), L-Nutra ("Nutra"), Marta Alcumbrac ("Alcumbrac"), Howard Smith ("Smith"), Peter Walrod ("Walrod"), Candice Zee ("Zee"), Mark Schaeffer ("Schaeffer"), and DOES 1 through 100 (collectively, "Defendants"), alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress.

On August 7, 2026, Cox filed the instant Motion to Quash Service of Summons. Any opposition would have been due on September 14, 2026. To date, no opposition has been filed.

II. Discussion

Request for
Judicial Notice

Cox's
request for judicial notice is GRANTED as to Exhibits 1 and 5 pursuant to Evidence Code Section 452, subdivision (d) except as to the truth of the matters asserted. Cox's request for judicial notice is DENIED as to Exhibits 2-4 as the Court can look to its own records without the need for judicial notice.

Merits of
the Motion

"A
defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8." (Code Civ. Proc., § 418.10, subd. (a).)

Cox specially
appears to move for an order quashing the service of the summons and complaint upon her via personal and substituted service on the grounds that such service attempts were improper and invalid because it was not done in accordance with Code of Civil Procedure Sections 415.10 and 415.20, subdivision (a). The Court agrees.

Code of
Civil Procedure Section 415.10 states in pertinent part: "A summons may be served by personal delivery of a copy of the summons and
of the complaint to the person to be served. Service of
a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective." (Code Civ. Proc., § 415.10 [emphasis added].)

Under Code

of Civil Procedure Section 415.20, subdivision (a), “[i]n lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person’s office or, if no physical address is known, at the person’s usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (a) [emphasis added].)

Here,

Plaintiff filed proof of substituted service on July 7, 2026 and proof of personal service on July 8, 2026. (See POS, 7/7/26; POS, 7/8/26.) With respect to the personal service, the proof of service indicates that a Pamela Molina (“Ms. Molina”), front desk receptionist at Barkhordarian Law Firm a/k/a Bark Law Firm was served the summons and complaint as an authorized agent for Cox on July 7, 2026. (POS, 7/8/26 at ¶3b.) However, Cox has not authorized anyone including Bark Law Firm and/or Ms. Molina to receive service on her behalf. (Cox Decl., ¶2; Molina Decl., ¶¶2-3; Barkhordarian Decl., ¶¶3-5; Alumbrac Decl., ¶3.) Similarly, there were no attempts to personally serve Cox. (Cox Decl., ¶5.)

As to

substituted service, the proof of service indicates that Ms. Molina was served the summons and complaint as the person apparently in charge at the office or usual place of business of Cox. (POS, 7/7/26 at ¶5b(1).) However, Cox has not worked at Bark Law Firm since January 2024. (Cox Decl., ¶2; Barkhordarian Decl., ¶2.) Furthermore, the summons and complaint were served by The Church of Truth, which is not a California registered process server (POS, 7/7/26 at ¶7; POS, 7/8/26 at ¶7), thus not entitled to the evidentiary presumption of valid service per Evidence Code Section 647. Finally, Plaintiff has not opposed the present motion with any rebuttal evidence, thus concedes on this issue. (See California Rules of Court Rule 3.1113(a); see also Rule 3.1320(f); Herzberg

v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [the party who fails to argue an issue abandons that issue].)

III.

Conclusion

Accordingly, Specially Appearing

Defendant Heather Kathleen Walsh Cox's Motion to Quash Service of Summons is GRANTED.

Specially Appearing Defendant Heather Kathleen Walsh Cox to give notice.